

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-

JACQUELINE E. STEPHENS, DAVID JACKSON
AMYX, DEBORAH AMYX, PHILIP A. MUNDY
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT FOR POSSESSION PURSUANT TO CHAPTER 723

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(S) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section §723.061(1)(C)2 of Florida Statutes.

2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida doing business as COLONIAL MOBILE MANOR.

3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #108, Palmetto, Manatee County, Florida 34221 and is doing business as a mobile home park with more than 10 lots.

4. On November 22, 2010, Plaintiff, as landlord, leased to Defendants, JACQUELINE E. STEPHENS and DEBORAH AMYX, Lot #108 of the above stated mobile home park pursuant

to Florida Statute §723.031.

5. Defendants, PHILIP MUNDY and JACQUELINE E. STEPHENS are the record owners of the mobile home located on the real property on 900 9th Ave East, Lot #108, Palmetto, Florida, 34221 and are parties to this eviction pursuant to provisions of the Florida Mobile Home Act, Chapter 723 of Florida Statutes.

6. On April 22, 2016, Defendant, DAVID JACKSON AMYX, was approved to reside in the premises of Lot 108 as a courtesy to JACQUELINE E. STEPHENS and DEBORAH AMYX in April of 2016 in order to assist approved residents JACQUELINE STEPHENS and DEBORAH AMYX to clean, paint and maintain the mobile home on Lot #108.

7. ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #108, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

8. The Defendants, JACQUELINE E. STEPHENS, DEBORAH AMYX DAVID JACKSON and each, individually, have violated the Rules and Regulations of COLONIAL MOBILE MANOR, specifically, Rule 3, by allowing additional occupants, not approved by park management, to reside with them in the premises of the mobile home on Lot #108. A copy of the Rules and Regulations of COLONIAL MOBILE MANOR are incorporated into this complaint and attached as Exhibit A.

9. On March 12, 2024, the Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX and ANY UNKNOWN PARTY(s) IN POSSESSION were notified by certified mail, return receipt requested, and by posting, that they were in violation of Rule 3 and pursuant to that notice were provided seven (7) days to correct all of the violations by removing the unapproved and additional residents including a suspected minor child from the premises of lot #108. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit B.

10. On March 12, 2024, Exhibit C was also posted on 900 9th Avenue East, Lot #108, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

11. Pursuant to Fla. Stat. § 723.061, the owner of the mobile home, PHILIP MUNDY, on March 12, 2024, was also notified of the violation of the tenants by certified mail return receipt requested.

12. A copy of the notice and the certified mail to PHILIP MUNDY is incorporated into this complaint and attached as Exhibit D.

13. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violation described in this Complaint, Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX and PHILIP A. MUNDY, did not cure the violation of Rule 3 of COLONIAL MOBILE MANOR.

14. As a result, on May 14, 2024, Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendant, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(s) in POSSESSION the right to reside on the premises, granting them 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot #108. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit E.

15. Plaintiff also posted Exhibit E on the premises of Defendants on May 14, 2024.

16. Plaintiff also delivered Exhibit E to PHILIP MUNDY by certified mail return receipt requested to the address provided by him to the FLHSMV as his address. A copy of the notice and the certified mail return receipt requested for Exhibit E is incorporated into this Complaint as Exhibit F.

17. After June 20, 2024, but before the Plaintiff filed suit to evict the Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX advised that they had removed all unauthorized persons from the mobile home and would not violate Rule 3 of

the Rules and Regulations of COLONIAL MANOR as to allowing unauthorized persons to reside in the mobile home.

18. Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX again violated the Rules and Regulations of COLONIAL MOBILE MANOR, specifically, Rule 3, by allowing additional occupants, not approved by park management, to reside with them in the premises of the mobile home on Lot #108.

19. As a result, on August 30, 2024, the Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX and ANY UNKNOWN PARTY(s) IN POSSESSION were notified by certified mail, return receipt requested, and by posting, that they were in violation of Rule 3 and pursuant to that notice were provided seven (7) days to correct all of the violations by removing the unapproved and additional residents including a suspected minor child from the premises of lot #108. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit G.

18. On August 30, 2024, Exhibit G was also posted on 900 9th Avenue East, Lot #108, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

19. Pursuant to Fla. Stat. § 723.061, the owner of the mobile home, PHILIP MUNDY, on March 12, 2024, was also notified of the violation of the tenants by certified mail return receipt requested.

20. A copy of the notice and the certified mail to PHILIP MUNDY is incorporated into this complaint and attached as Exhibit H.

21. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violation described in this Complaint, Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX and PHILIP A. MUNDY, did not cure the violation of Rule 3 of COLONIAL MOBILE MANOR.

22. As a result, on September 17, 2024, Plaintiff posted on the premises and sent by

Certified Mail Return Receipt Requested, a notice of termination of the Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX and ANY UNKNOWN PARTY(s) IN POSSESSION, the right to reside on the premises, granting them 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot #108. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit I.

23. Plaintiff also posted Exhibit I on the premises of Defendants on June 28, 2024.

24. Plaintiff also delivered Exhibit I to PHILIP MUNDY by certified mail return receipt requested to the address provided by him to the FLHSMV as his address. A copy of the notice and the certified mail return receipt requested for Exhibit I is incorporated into this Complaint as Exhibit J.

25. As of the date of the filing of this Complaint, the Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX and PHILIP A. MUNDY have not complied with the Rules and Regulations of COLONIAL MOBILE MANOR Rule 3 by continuing to allow unapproved and additional residents including a suspected minor child to reside on the premises of lot #108.

26. Pursuant to Section §723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action

27. Pursuant to Section §723.061(3) of Florida Statutes, Plaintiff is entitled to summary procedure set forth in Fla. Stat. §51.011.

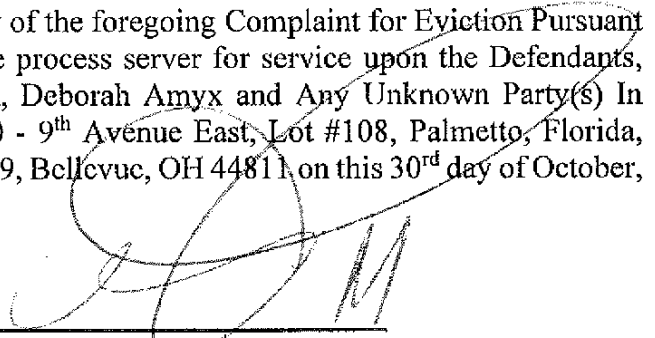
28. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

29. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendants is entitled to recover its costs and attorney fees, if sought.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises against Defendants, JACQUELINE E. STEPHENS, DAVID JACKSON AMYX, DEBORAH AMYX, PHILIP A. MUNDY and ANY UNKNOWN PARTY(s) IN POSSESSION.

COUNT II
CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint for Eviction Pursuant to Chapter 723 has been furnished to a private process server for service upon the Defendants, Jacqueline E. Stephens, David Jackson Amyx, Deborah Amyx and Any Unknown Party(s) In Possession, at their last known address of 900 - 9th Avenue East, Lot #108, Palmetto, Florida, 34221 and Philip Mundy at 9618 State Route 269, Bellvue, OH 44811, on this 30rd day of October, 2024



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